

FIELD RESOURCE

Brisbane Heritage and Character Overlay Reference

What each overlay means and what you can change

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Three different overlays in Brisbane City Plan 2014 protect older buildings, and each one restricts a different set of works. The Heritage overlay applies to individually listed heritage places. The Traditional Building Character overlay applies to dwellings constructed in 1946 or earlier in mapped streets. The Pre-1911 Building overlay applies to dwellings constructed before 1911 anywhere in the city. This reference summarises what each one does, how to check whether your property is affected, and what to expect when you apply for changes or sell.

Heritage overlay (Heritage Place and Local Heritage Place)

The Heritage overlay in City Plan 2014 identifies places of local or state heritage significance. State heritage places are listed on the Queensland Heritage Register and assessed by the Queensland Government. Local heritage places are listed in the Brisbane Heritage Register and assessed by Council. The Heritage overlay code requires that any change does not damage or diminish the cultural heritage significance of the place.

- ☐ Applies to individual sites that have been formally assessed and listed, not to a streetscape as a whole.
- ☐ Restricts demolition, removal, alteration, and any development on or adjoining the listed place that could compromise its heritage significance.
- ☐ Most changes need a development application unless they fall under a Heritage Exemption Certificate or the General Exemption Certificate.
- ☐ The General Exemption Certificate covers routine works on local heritage places, including painting, landscaping, internal kitchen and bathroom replacement, solar panels, and stair repairs, where the conditions in the certificate are met.
- ☐ State heritage places sit under the Queensland Heritage Act 1992 and are administered by the State, not Council. The General Exemption Certificate for local heritage places does not apply to them.
- ☐ Source: Brisbane City Council, Heritage and character properties; Queensland Heritage Register.

Traditional Building Character overlay (pre-1947 dwellings)

The Traditional Building Character overlay applies to mapped streets in older suburbs where pre-1947 dwellings define the streetscape. A character house under City Plan 2014 is any dwelling constructed in 1946 or earlier. The overlay has two parts: a demolition code and a design code.

- ☐ The demolition code requires Council approval to demolish, remove, or relocate a dwelling built in 1946 or earlier in a mapped street.
- ☐ Demolition is generally only supported where the dwelling does not contribute to traditional building character, or where it sits in a section of the street that has lost its character. The Planning and Environment Court of Queensland has decided several cases on this exact test.
- ☐ The design code regulates additions, alterations, and new buildings. Extensions must reflect and complement traditional building character. An enclosed rear extension is allowed where preceded by lawful demolition under the demolition code.
- ☐ Some minor works are accepted development under City Plan 2014 table 5.3.4.1 and do not need approval. Anything visible from the street usually does need approval.
- ☐ A Traditional Building Character listing is not the same as a heritage listing. The overlay protects the streetscape, not the individual property as a heritage place.
- ☐ Source: Brisbane City Council, City Plan 2014 Traditional building character (demolition) overlay code and Traditional building character (design) overlay code.

Pre-1911 Building overlay

The Pre-1911 Building overlay is the strictest of the three for individual dwellings. It applies citywide to dwellings constructed before 1911, regardless of whether the surrounding street is mapped for traditional character. Houses identified under this overlay are to be retained.

- ☐ Applies to specific sites identified on overlay map OM-016.2, citywide rather than only in mapped streets.
- ☐ Demolition is not supported. The overlay requires that pre-1911 buildings be retained.
- ☐ Extensions are permitted but must not alter the original parts of the house. The original fabric, form, and detailing are protected.
- ☐ A citywide amendment in recent years added 139 additional sites to the overlay. A further minor amendment was adopted in August 2024 to update the overlay map.
- ☐ A property can sit under the Pre-1911 Building overlay, the Traditional Building Character overlay, and the Heritage overlay at the same time. Each applies separately.
- ☐ Source: Brisbane City Council, City Plan 2014 Pre-1911 building overlay code; Citywide update Pre-1911 building overlay amendment.

How to check whether your property is affected

Every property in Brisbane can be checked against all overlays in a few minutes using public tools. Do this before you contract to buy a character home, and before you brief an architect or builder.

- ☐ Open City Plan online at brisbane.qld.gov.au and use the interactive mapping tool. Search by address or lot on plan, then turn on the Heritage overlay, Traditional building character overlay, and Pre-1911 building overlay layers.
- ☐ Search the Brisbane Heritage Register at heritage.brisbane.qld.gov.au for local heritage place listings. The register includes historical facts, architectural style, and photographs.
- ☐ Search the Queensland Heritage Register at apps.des.qld.gov.au/heritage-register for state heritage place listings.
- ☐ Order a Property Lot Report through Brisbane City Council for a written summary of all overlays affecting the site.
- ☐ For new contracts, ask the agent or solicitor whether the disclosure documents identify any heritage or character listing. The contract should reflect what the overlays show.

Application and approval process

The pathway depends on which overlay applies and what work is proposed. Smaller works can often proceed under an exemption certificate. Larger works need a development application.

- ☐ Local heritage place, routine works: check the General Exemption Certificate first. If the proposed work is listed in one of the 12 tables and you can meet the conditions, no development application is needed.
- ☐ Local heritage place, work outside the certificate: lodge a Heritage Exemption Certificate request or a development application against the Heritage overlay code.
- ☐ State heritage place: apply through the Queensland Government for a Heritage Exemption Certificate or development approval under the Queensland Heritage Act.
- ☐ Traditional Building Character overlay, demolition: lodge a development application assessed against the demolition overlay code. Evidence of pre-1947 construction date and contribution to streetscape is the central question.
- ☐ Traditional Building Character overlay, additions and alterations: assess against the design overlay code. Some minor works are accepted development. Most visible changes need approval.
- ☐ Pre-1911 Building overlay: any work that touches the original parts of the dwelling needs Council approval. Engage a town planner or heritage architect early.
- ☐ Council has a Planning Information Officer service on 07 3403 8888 for early advice before you lodge.
- ☐ Source: Brisbane City Council, Exemption certificates and Heritage exemption certificates; Queensland Government, Heritage Exemption Certificate applications.

What it means when you sell

Heritage and character listings cut both ways at sale. They narrow the buyer pool for renovators and developers, and they widen it for buyers who specifically want a protected character home. In the Brisbane inner east, the second group is large and active.

- ☐ A well-presented character home in the Traditional Building Character overlay typically attracts strong owner-occupier interest because the streetscape is protected over time.
- ☐ A property under the Pre-1911 Building overlay has a smaller, more specialised buyer pool. The buyers who do want it tend to value it highly, but the campaign needs to find them.
- ☐ A locally listed heritage place needs targeted marketing. Generic portals undersell it. The buyer pool includes architects, restorers, and owner-occupiers with specific interest in heritage.
- ☐ Disclose the overlay status clearly in the marketing and the contract documents. Buyers who discover an overlay during due diligence after offering tend to renegotiate or withdraw.
- ☐ For renovation-minded buyers, the practical question is what can and cannot be changed. Have the answer ready: a one-page summary of overlay status, what is exempt, and what would need approval.
- ☐ A pre-purchase town planner report is worth the cost when the buyer is uncertain. Offering one as part of the campaign reduces friction in the offer stage.

Heritage and character listings are not a problem to be hidden. They are a defining feature of much of the Brisbane inner east, and for the right buyer they are the reason the property is wanted at all. Verify the overlay status with City Plan online and the Brisbane Heritage Register before any major decision.

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